

Defendants request sanctions pursuant to sections 2023.010, subdivisions (i), (h), 2023.020, and 2023.030, subdivision (a), on the grounds that Plaintiff failed to properly meet and confer and brought the present motion without substantial justification. The Court does not find that Plaintiff failed to properly meet and confer. However, for all the reasons discussed above—namely, the main purpose of the Motion seeking an advisory opinion on an unripe issue and Plaintiff’s failure to meaningfully address the issue—the Court finds that Plaintiff brought the present motion without substantial justification.

Thus, Defendants’ request for sanctions is GRANTED IN PART. The Court finds Defendants’ counsel’s hourly rate and time spent opposing the motion reasonable. (See Declaration of Akhila Ganapathy, ¶ 9.) However, the Court does not grant sanctions for anticipated time. (*Ibid.*) Thus, Plaintiff is ordered to pay, within 20 days of Notice of Entry of Order, to Defendants, care of their attorneys of record, sanctions in the amount of \$1,050 [= \$210 / hr x 5 hrs].

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Angelica Hernandez v. Estate of Jack Malan et al

25CV002200

SPECIAL APPEARANCE OF DEFENDANTS: MOTION TO QUASH SERVICE OF SUMMONS

TENTATIVE RULING: The motion is MOOT.

Specially appearing Defendant Chris Malan (“Defendant”) previously filed a motion to quash service of summons, directed at service on her in the capacity as an individual, successor in interest to Jack Malan, and as successor trustee of the Malan Family Trust on May 11, 2026, as evidenced by the Proofs of Service filed May 18 and 26, 2026. On June 18, 2026, Defendant’s motion was DENIED. The present Motion to Quash is directed at service on her on June 14, 2026, as evidenced by the Proof of Service filed July 16, 2026. However, no such service on June 14 was necessary in light of the Court’s June 18 Order, which was mailed to the parties on July 29, 2026. Therefore, the present Motion directed at such unnecessary service is MOOT.

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Lee Bycel et al v. Francisco Ruiz

26CV001394

VERIFIED PETITION TO RELEASE PROPERTY FROM MECHANICS LIEN

APPEARANCE REQUIRED

Lee Bycel and Judy Bycel (collectively, “Petitioners”) petition, pursuant to Civil Code section 8460 *et seq.*, for an order releasing a mechanic’s lien recorded on the real property located at 860 Acorn Way, Napa, CA, 94558 (“Property”) by respondents/lien claimants Francisco Ruiz (“Claimant”). Petitioners also request an award of attorneys’ fees and costs against Claimant in the sum of \$5,250.00.